



United States
Attorney's Office
District of New Jersey



Amtrak Employees Admit Participating in \$11 Million Health Care Fraud Scheme

Wednesday, May 28, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – Five Amtrak employees recently admitted participating in a health care fraud scheme to defraud Amtrak, U.S. Attorney Alina Habba announced.

Kevin Frink, 53, of Willingboro, New Jersey, pleaded guilty before U.S. District Judge Madeline Cox Arleo in Newark federal court to an Indictment charging him with conspiracy to commit health care fraud. Michael Toal, 35, of Hazlet, New Jersey, David McBrien, 37, of Levittown, Pennsylvania, Damany Walker, 41, of Irvington, New Jersey, and David Lonergan, 65, of Rockaway Park, New York, in recent weeks also pleaded guilty before Judge Arleo in Newark federal court to the Indictment charging conspiracy to commit health care fraud.

The Indictment also charges four other co-conspirators in connection with the scheme: Quinton Johnson, 53, of Irvington, New Jersey; Gregory Richardson, 35, of Roosevelt, New York; Timothy Bogen, 59, of Hamden, Connecticut; and Dion Jacob, 50, of Brooklyn, New York. Defendant Rodolfo Rivera, 41, of Clayton, Delaware, previously pleaded guilty to the Indictment, and co-conspirator Anthony Saloka, 44, of Elizabeth, New Jersey, previously pleaded guilty to an Information.

“The defendants admitted to colluding with corrupt health care providers in a scheme to defraud Amtrak’s health care plan for personal financial gain. My office is committed to holding accountable those who profit from health care scams, like this one, that harm the public and the health care system.”

- U.S. Attorney Alina Habba

According to documents filed in this case and statements made in court:

From January 2019 through June 2022, Frink, Toal, McBrien, Walker, Lonergan, and their co-conspirators—who were also Amtrak employees—engaged in a scheme to obtain cash kickbacks from health care providers in return for their agreement to allow their health insurance plan to be billed for services that were never provided and were not medically necessary. In total, as a result of the conspiracy, the Amtrak health care plan paid over \$11 million in fraudulent claims associated with providers connected to the scheme.

Each defendant received thousands of dollars in cash kickbacks from health care providers in return for their participation in the scheme, including from Punson Figueroa, an acupuncturist. Defendants Frink, McBrien, Walker, and Lonergan also received cash kickbacks from Michael DeNicola, a podiatrist. Figueroa previously pleaded guilty to conspiracy to commit health care fraud and was sentenced on September 24, 2024 to 34 months in prison. DeNicola previously pleaded guilty on June 29, 2022 to conspiracy to commit health care fraud, among other offenses. His sentencing remains pending.

The health care fraud conspiracy charge carries a maximum potential penalty of 10 years in prison and a \$250,000 fine. Walker's and McBrien's sentencings are scheduled for July 24, 2025. Lonergan's sentencing is scheduled for August 20, 2025. Toal's sentencing is scheduled for October 23, 2025. Frink's sentencing is scheduled for October 9, 2025.

U.S. Attorney Habba credited special agents of the Amtrak Office of Inspector General, under the direction of Special Agent in Charge Michael J. Waters, the Amtrak Police Department, under the direction of Chief of Police Sam Dotson, and special agents of the Drug Enforcement Administration, under the direction of Special Agent in Charge Frank A. Tarentino III in New York, with the investigation leading to the guilty plea.

The government is represented by Assistant U.S. Attorneys Jessica R. Ecker and Katherine M. Romano of the Health Care Fraud and Opioid Abuse Prevention Unit, and Senior Trial Counsel Barbara Ward of the Bank Integrity, Recovery, and Money Laundering Unit, in Newark.

The charge and allegations contained in the Indictment against Johnson, Richardson, Bogen, and Jacob are merely accusations, and they are each presumed innocent unless and until proven guilty.

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Defense counsel: Sarah Sulkowski, Esq. (for Kevin Frink)

Michael Chazen, Esq. (for Michael Toal)

Michael V. Calabro, Esq. (for David McBrien)

Michael Rosas, Esq. (for Damany Walker)

Bruce S. Rosen, Esq. and Sarah Fehm Stewart, Esq. (for David Lonergan)

Topic

HEALTHCARE FRAUD

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